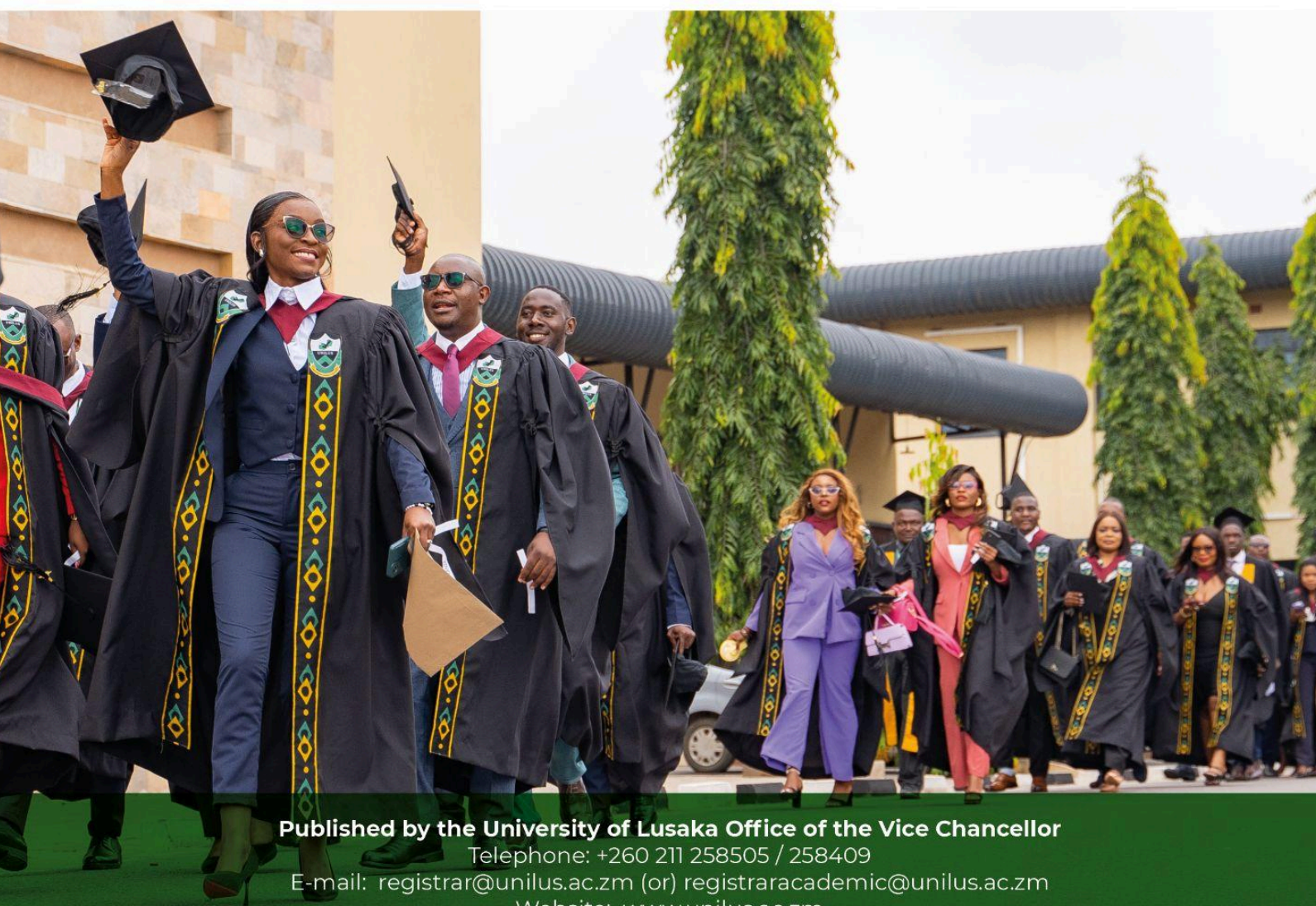




UNIVERSITY
of LUSAKA

STUDENT CODE OF CONDUCT AND DISCIPLINARY PROCEDURES

PASSION FOR QUALITY EDUCATION: OUR DRIVING FORCE



Published by the University of Lusaka Office of the Vice Chancellor

Telephone: +260 211 258505 / 258409

E-mail: registrar@unilus.ac.zm (or) registraracademic@unilus.ac.zm

Website: www.unilus.ac.zm

Table of Contents

1.0	INTRODUCTION.....	5
2.0	SCOPE.....	5
3.0	DEFINITIONS.....	5
4.0	CORE VALUES FOR STUDENTS.....	10
4.1	Integrity.....	10
4.2	Respect.....	10
4.3	Open-mindedness.....	10
4.4	Discipline.....	10
4.5	Tolerance.....	10
4.6	Team spirit.....	11
4.7	Responsibility.....	11
5.0	STUDENTS' RIGHTS.....	11
6.0	STUDENT RESPONSIBILITIES AND DISCIPLINARY ACTION.....	11
6.1	Towards Lecturers.....	12
6.2	Towards Other Students.....	12
6.3	Towards University Employees and Members of the Public.....	12
6.4	Towards the University.....	12
6.5	Responsibilities towards Themselves.....	12
7.0	PROHIBITED CONDUCT.....	13
7.1	Non-Academic.....	13
7.1.1	Disruptive Conduct.....	13
7.1.2	Obscene Conduct.....	14
7.1.3	Obscene Matter or things.....	14
7.1.4	Public Disturbance.....	14
7.1.5	Excessive/Disruptive Noise.....	14
7.1.6	Vandalism.....	14
7.1.7	Smoking.....	15
7.1.8	Alcohol.....	15
7.1.9	Drugs.....	15
7.1.10	Littering.....	15
7.1.11	Weapons.....	15
7.1.12	Theft.....	15

7.1.13 Misuse of Electronic Resources.....	15
7.1.14 Harassment and Stalking.....	15
7.1.15 Gender Based Violence (GBV).....	15
7.1.16 Bullying	16
7.1.17 Inappropriate Dressing and Appearance.....	16
7.1.18 Hazing.....	16
7.1.19 Violence.....	16
7.1.20 Tampering with the University's safety and security installations	16
7.1.21 Unauthorised use of University Facilities, Property, and Resources	17
7.1.22 University Directive(s).....	17
7.1.23 Disruption of University's Community Interest.....	17
7.1.24 Malicious Complaints.....	17
7.1.25. Cybercrimes.....	17
7.1.26 Forgery.....	17
7.1.27 Uttering of a false document.....	17
7.1.28 Rape/attempted rape	18
7.1.29 Indecent Assault	18
7.1.30 Insulting, Abusive or Offensive Conduct	18
7.1.31 Defamation	18
7.1.32 Intoxication	18
7.1.33 Incitement of Fellow Students	18
7.2 Academic Misconduct.....	19
7.2.1 Examination Malpractice	19
7.2.2 Fabricating Academic Materials	20
7.2.3 Plagiarism.....	20
7.2.4 Corrupt Practices.....	20
7.2.5 Grade Tampering.....	20
7.2.6 Impersonation	20
7.2.7 Absenteeism	20
7.2.8 Examination by Proxy	21
7.2.9 Falsification of Information	21
7.2.10 Forgery and Uttering of Registration or Examination Dockets	21
7.2.11 Absence from the Examination Hall	21

7.3	Student Accommodation.....	21
7.3.1	Handling of Offences and Breaches	21
7.3.2	Role of the Hostel Matron/Patron	21
7.4	Library.....	22
8.0	Breach of the provisions of any University Code of Conduct, Rule or Regulation.....	22
9.0	PROCEDURE.....	22
9.1	Academic Offences.....	22
9.2	Non-Academic Offences.....	23
10.0	DISCIPLINARY COMMITTEE.....	23
10.1	Composition.....	23
10.2	Procedures.....	24
10.3	Sanctions.....	24
10.3.1	Warning or Reprimand.....	24
10.3.2	Suspension	24
10.3.3	Expulsion	24
10.3.4	Fines and Reparation.....	24
10.4	Mitigation.....	25
11.0	APPEALS.....	25
12.0	ENTRY INTO EFFECT.....	26
13.	REVIEW.....	26
APPENDIX I.....		27
ACADEMIC OFFENCES AND SANCTIONS.....		27
APPENDIX II.....		28
NON-ACADEMIC OFFENCES.....		28

1.0 INTRODUCTION

The University of Lusaka (hereinafter referred to as “UNILUS” or “the University”) was established as a centre of excellence dedicated to delivering academic and professional training enriched with value addition. The Student Code of Conduct and Disciplinary Procedures (hereinafter referred to as “the Code”) serves as a guiding framework for student behaviour within the University community. Accordingly, all students who choose to pursue their studies at the University are bound by the Code and are expected to conduct themselves with civility and propriety at all times, whether on or off campus.

2.0 SCOPE

The Code of Conduct applies to all students of the University. It applies to:

- a) Activities in which they engage in as students of the University; or
- b) Services or facilities they enjoy by being students of the University; or
- c) Their presence in the vicinity of, or their access to, any premises owned, leased or managed by the University; or
- d) Any activity not covered by (a), (b) or (c) above, which is considered to adversely affect the safety, interests or reputation of the University, its students, employees or authorised representatives.

3.0 DEFINITIONS

Academic Integrity: commitment to, and demonstration of honest and moral behaviour in an academic setting.

Appeal: earnest request for aid, support, mercy and sympathy.

Assault causing bodily harm: shall have the meaning as defined in the Penal Code Cap 87 of the Laws of Zambia.

Breach: infraction or violation of law, trust, faith or promise.

Bullying: engaging in repeated and/or severe aggressive behaviour likely to intimidate, hurt, control, or diminish another individual physically, mentally or emotionally.

Casual Gift: Refers to any conventional hospitality offered on a modest scale, or any unsolicited gift of modest value, extended to a person in recognition or appreciation of their services or as a gesture of goodwill. It encompasses inexpensive seasonal gifts presented to staff or associates during festive or other special occasions, provided such gifts are not in any way connected to the performance of a person’s official duties so as to constitute an offence under this Code.

Collusion: Co-operation among students when one or more of the students falsely present academic work for assessment as individual effort involved.

Common assault: Shall have the meaning as defined in the Penal Code, Cap 87 of the laws of Zambia.

Corrupt practices: Means the soliciting, accepting, obtaining, giving, promising or offering of a gratification by way of a bribe or other personal temptation or inducement for the benefit of oneself or another person.

Cybercrime: Shall have the meaning as defined in the Cyber Crimes Act, No. 4 of 2025.

Defamatory matter: Shall have the meaning as defined in the Penal Code Cap 87 of the laws of Zambia

Disciplinary Committee: Means a panel of suitably qualified people appointed at the discretion of the Vice-Chancellor, (or his/her delegate), one of whom shall be designated Chairperson, to determine the violation of provisions of this Code or any matter referred to it.

Disciplinary Policy: rules of conduct at the University.

Disorderly conduct: Conduct, which a reasonable person under similar circumstances, should be expected to know, would disturb peace.

Drugs: Shall have the meaning as defined in the Narcotic Drugs and Psychotropic Substances Act No. 35 of 2021.

Examination: Any assessment, written or unwritten, conducted by the University.

Examination by proxy: an examination written by a person other than the registered student.

Examination Malpractice: any act or omission by a student in relation to a University examination whereby competent authorities determine that the student has deceived, or attempted to deceive the examination authorities thereby compromising the academic integrity of the University or sabotages the educational process. Common offences under this category include, but are not limited to:

- a) Possession of unlawful materials during an examination.
- b) Unauthorized communication with others during an examination.
- c) Possession of phones, laptops, iPad or other electronic material, which are not expressly allowed in a particular examination.
- d) Leakage of examination materials.

- e) Possession of written materials on one's body or person to procure an advantage in an examination.
- f) Purposefully leaving learning materials, phones, iPad, or other electronic devices in, but not limited to, a toilet, classroom, corridor, or vehicle during an examination with the intent to access or use such materials.
- g) Presenting work as their own when it is no.

Expulsion: Permanent exclusion from the University and immediate termination of all rights and privileges associated with student status with no opportunity for re-application or readmission.

Fabricating academic materials: Intentional misrepresentation of academic research results by fabricating or falsifying data.

Forgery: Is making of a false document with intent to defraud or to deceive.

Gender Based Violence: Shall have the meaning as defined by the Anti-Gender-Based Violence Act No.1 of 2011.

Grade tempering: Shall mean such conduct, which includes, but is not limited to altering grades on transcripts, assignments, or examinations or illegally accessing or attempting to access grading systems or records, coercing or attempting to coerce instructors or staff to change grades, submitting fraudulent documents to influence grading decisions.

Gratification: Shall have the meaning as defined in the Anti-Corruption Act No. 3 of 2012.

Harassment: Shall have the meaning as defined by the Anti-Gender Based Violence Act No.1 of 2011.

Hazing: An intentional act or method of initiation into a group, club, organization, or team that subjects another person, whether voluntarily or involuntarily, to conduct that may injure, abuse, humiliate, harass, or intimidate that person.

Impersonation: Is purporting to be another student with the intention to deceive.

Inappropriate dressing: Refers to attire that is unsuitable, unprofessional or disrespectful for a specific context, place or culture often failing to meet social norms of modesty such as revealing clothes, sloppy attire or clothing with offensive, vulgar or polarizing graphics.

Indecent Assault: shall have the meaning as defined by the Penal Code, Cap 87 of the laws of Zambia.

Intoxication: Shall mean the condition of being under the influence of alcohol, illicit drugs, controlled substances, or any other intoxicating or psychoactive substance, resulting in impaired physical, mental, or behavioural functioning. Evidence of intoxication may include,

but is not limited to, slurred speech, impaired coordination, erratic behaviour, reduced cognitive ability, or any other observable signs of impairment.

Loss of Privileges: Loss of any or all privileges as a student for a prescribed period including, but not limited to: access to university premises or resources; eligibility for or continued participation in student leadership positions (elected or appointed), athletic team, student organisation, or sports club; student identification card privileges; and/or eligibility to enrol in a class or classes.

Misconduct: Behaviour deemed to be unacceptable by the University.

Obscene conduct: Includes, but is not limited to intentionally or knowingly engaging in sexual intercourse or sexual contact in any public or University-owned area or exposing, displaying, or revealing any part of one's genitals or intimate body parts in public or semi-public settings on University premises or at University functions or engaging in any behaviour that is sexually explicit, offensive, or intended to cause alarm, discomfort, or distress to others within the University community.

Off-Campus Conduct: Conduct of students in connection with any required educational activity or co-curricular experience (e.g. a professional practice assignment, internship, field trip, student teaching assignment, research, student leadership conference, social event, etc.) and any activity or event sponsored, conducted, or authorised by the University.

On-Campus conduct: Conduct of students within the area of land that contains the main buildings of the University.

Plagiarism: Process or practice of using another person's ideas or work and pretending that it is one's own.

Physical Assault: Unwanted physical contact or use of physical force to threaten or cause physical injury, pain, or illness.

Rape: Shall have the meaning as defined by the Penal Code, Cap 87 of the laws of Zambia

Regalia: Clothing worn for formal functions by people who will be in the public eye.

Restitution: Requirement of a person to pay for damages caused to people or property, reimbursement of misappropriated University funds, or reimbursement of other expenses incurred as a result of violations of the Code.

Stalking: Shall have the meaning as defined by the Anti-Gender Based Violence Act No.1 of 2011.

Student: Means any person who has been admitted, enrolled, registered, or provisionally registered to pursue a programme of study or research at the University, whether on a full-time, part-time, distance, online, exchange, or visiting basis, and includes a person who:

- (a) Is attending classes, examinations, clinicals, practical attachments, internships, fieldwork, or any other academic or co-curricular activity of the University;
- (b) Has accepted an offer of admission and is awaiting registration or commencement of studies;
- (c) Is on approved leave of absence, suspension of studies, deferment, or any other authorised interruption of studies while retaining student status;
- (d) Has completed the requirements of a programme of study but has not yet graduated or had their qualification formally conferred; or

Suspension: Temporary exclusion from the University for a specified period and includes:

- a) Both a withdrawal from all classes and a prohibition on registration and/or enrolment in classes until the end of the suspension period;
- b) Removal/exclusion from the residence halls; and
- c) Revocation of all student privileges and rights related to access to and participation in university facilities (subject to arrest for trespassing and a charge of failure to comply), resources, activities, and events (including graduation privileges).

Standard of conduct: Principles, values, standards, or rules of behaviour that guide the decisions, procedures and systems of the University in a way that contributes to the welfare of its key stakeholders and respects the rights of all constituents affected by its operations.

Theft: Shall have the meaning as defined by Section 265 of the Penal Code Cap 87 of the Laws of Zambia.

Threat: An expression of intention to inflict evil, injury, or damage.

Values: Means a person's or society's beliefs about good behaviour and what things are important.

Violence: Is reckless causing (or threatening or attempting to cause) of physical or emotional harm or endangering the health or safety of any person (including verbal abuse, threats, intimidation, and/or coercion).

Venue: Any location designated by the University for the conduct of examinations, and includes the examination hall or classroom, surrounding corridors, bathrooms, toilets, and

any other spaces under the control of the University that are reasonably connected to the examination process.

Warning: Official notice to a student that his/her behaviour has violated this Code or other University policies and procedure.

Weapon: Any article made or adapted for use for causing or threatening injury to the person or intended by the person in question for such use and includes any firearm, fireworks, explosives, metal knuckles, knife, spear, arrow, stone, axe handle, stick or similar article.

4.0 CORE VALUES FOR STUDENTS

The University has, in keeping with international practices, adopted some universal core values. The following are the core values that all students of the University shall abide by:

4.1 Integrity

Refers to the observance of moral and ethical principles, soundness of moral character, and honesty. Students with integrity work hard to earn their degrees fairly and honestly by putting in their all to study, complete assignments and write examinations. Credibility adversely promotes one's professional goals.

4.2 Respect

Is a feeling or understanding that someone or something is important and, as such, should be treated appropriately. Thus, being respectful towards people is a key aspect of life as it underpins positive relationships that underscore success. Students are expected to treat all members of staff, fellow students and other persons with respect and dignity.

4.3 Open-mindedness

Being open-minded means a willingness to listen to other ideas and opinions, even if they conflict with one's own. Open-mindedness can advance mutual understanding which accommodates the ideal of students working constructively and cohesively toward achieving common goals, despite intense disagreement.

4.4 Discipline

Means obedience to set rules. Without it, there will be complete chaos and disorder in society. The ability for an individual to have self-restraint allows them to behave in a consistently stringent and controlled manner. A lack of this ability can have adverse effects.

4.5 Tolerance

Willingness to accept feelings, habits, or beliefs that are different from one's own. Tolerance is about how to see the world from the perspective of others, not just one's perspective.

4.6 Team spirit

Team spirit is when the members of a group want the team to succeed. In an academic context, this is an opportunity to make friends and work with others as each student can benefit from a personal level from teamwork. A team of students must actively listen to each other, articulate ideas and use genuinely constructive criticism to be effective.

4.7 Responsibility

Responsibility is one of the traits of our character, which means that a person can respond to his actions, take some duties and face certain consequences of the actions that may occur. People are not born with a sense of responsibility. However, it is something that every person should cultivate in themselves. Responsible people can be trusted, and this benefits both the person and the people counting on the responsible person.

5.0 STUDENTS' RIGHTS

Students found to have violated a provision(s) of the Code have the following rights:

- a) To be informed of the allegations against them;
- b) To be allowed reasonable time to prepare a response;
- c) To hear and respond to the evidence upon which an allegation is based;
- d) To be assured of the confidentiality of the process and outcome;
- e) To have reasonable access to the case file during the disciplinary conference or hearing;
- f) To have an advisor as prescribed by the process under this Code;
- g) To appeal the outcome of the case following the provisions of this Code.

Students are expected to understand and abide by the rules and regulations of the University. Ignorance of a rule or regulation will not be an acceptable reason to find a student not responsible.

6.0 STUDENT RESPONSIBILITIES AND DISCIPLINARY ACTION

Students are expected to conduct themselves in a lawful, civil, and responsible manner. To this end, they are required to observe all University rules, regulations, and policies including this Code. In addition, students are primarily expected to provide the University with the correct information, make the necessary payments as required, and do their academic registration on time.

The Code is intended to address concerns regarding the behaviour of students who are members of the University community. To establish perfect harmony, the University recognizes and values the diversity of student experiences and expectations and is committed to treating students, both academically and personally, fairly and transparently. In return, students are required to comply with the requirements stated in this Code.

6.1 Towards Lecturers

To establish perfect cohesion within the University, students are expected to display ethical behaviour towards their lecturers. To this end, students are required to:

- a) Treat lecturers with respect and dignity.
- b) Demonstrate academic integrity and honesty.
- c) Attend and participate actively in lectures, laboratory practicals, seminars and any other activities.
- d) Complete assigned work promptly with special attention paid to presenting quality work.
- e) Avoid excuses for unwanted behaviour.
- f) Be punctual for all lectures and activities.

6.2 Towards Other Students

Collaboration is a value that students should share. Thus, students are not expected to steal, defraud, plagiarise or even discriminate.

6.3 Towards University Employees and Members of the Public

Students have a responsibility to portray ethical behaviour towards all employees and any other member of the public. As such, they are expected to treat them with respect, dignity, impartiality and courtesy. Students also have to act honestly and ethically in their dealings with University employees and other members of the public.

6.4 Towards the University

Students also have responsibilities regarding the University, whether on or off-campus. The application of the Code of Conduct is not confined to internal use

at the institution but also outside. Students are representatives of the University outside it and must, therefore, behave appropriately.

6.5 Responsibilities towards Themselves

Students also have responsibilities towards themselves which include:

- a) Meeting their financial obligations to the university in time by paying the prescribed fees and signing a Credit Agreement Form where applicable.
- b) Abiding by the University's terms and conditions of the credit agreement where applicable.
- c) Completing their semester and examination registration in time.
- d) Communicate prolonged absence from the University by filling in a Deferment Form while being mindful that deferment has financial implications at different points of deferment.
- e) To have student identity cards at all times.
- f) To pay late registration fees when applicable.
- g) To pay for Transcripts of Results that are requested for before graduation.
- h) To pay extension fees for dissertations that are completed after the scheduled period.
- i) To be conversant with all the University's provisions, regulations and guidelines.
- j) Presenting the correct information to the University and their sponsors at all times.
- k) Attending lectures on time and regularly.
- l) Being prepared for lectures and other programmes with all the requirements.
- m) Taking good care of University property.
- n) Completing all assigned tasks.
- o) Practising good time management.
- p) Respecting themselves and others.
- q) Studying regularly.
- r) Consistently strive for excellence.

7.0 PROHIBITED CONDUCT

The Code of Conduct is not intended to cover every instance of potentially prohibited conduct. However, the University expects its students to conduct themselves responsibly. The University considers the following actions as unacceptable forms of behaviour and subject to disciplinary response:

7.1 Non-Academic

The following are considered as non-academic offences whose sanctions are as outlined in Appendix 2.

7.1.1 Disruptive Conduct

A student shall not intentionally disrupt, obstruct, or interfere with the University's educational mission, operations, business, or functions or intentionally disrupt, obstruct or interfere with another student's living environment or learning environment.

7.1.2 Obscene Conduct

A student shall not engage in obscene conduct.

7.1.3 Obscene Matter or things

Student shall not:

- a) Make, produce, or possess any obscene writings, drawings, prints, paintings, photographs, posters, emblems, cinematograph films, electronic material, or any other object that tends to corrupt morals; or
- b) Import, convey, export, or cause to be imported, conveyed, or exported, any such material, or in any manner circulate the same; or
- c) Engage in, or take part in, any business whether public or private concerned with such materials, including dealing in, distributing, exhibiting, or lending them; or
- d) Advertise or otherwise make known, by any means whatsoever, information intended to assist in the circulation, distribution, or procurement of such materials, whether directly or indirectly; or
- e) Publicly exhibit, promote, or take part in any indecent show, performance, or act that tends to corrupt morals.

7.1.4 Public Disturbance

A student shall not create a public disturbance, including, but not limited to committing a nuisance or generally engaging in disruptive behaviour; rioting; inciting and/or assembling to riot; raiding; inciting and/or assembling to raid University operating units or property; and disrupting, disturbing, or interfering with the academic atmosphere of a living/learning environment.

7.1.5 Excessive/Disruptive Noise

A student shall not engage in excessive or disruptive noise, including, but not limited to, the public use of unapproved amplified sound and the amplification of sound in a manner that disrupts or disturbs the normal functioning of the University.

7.1.6 Vandalism

A student shall not engage in any unauthorized tampering, defacing, damaging or destroying University or private property.

7.1.7 Smoking

A student shall not use, make, nor distribute smoking products including, but not limited to, cigarettes, cigars, e-cigarettes, pipes, hookahs, or vaporizers on campus.

7.1.8 Alcohol

A student shall not possess, use, manufacture, sale, or distribute alcohol on University premises.

7.1.9 Drugs

A Student shall not possess, use, manufacture, sale or distribute drugs and/or drug paraphernalia.

7.1.10 Littering

A student shall not dispose of litter in undesignated places.

7.1.11 Weapons

A student shall not possess, use, manufacture and/ or distribute weapons on University premises.

7.1.12 Theft

A student shall not engage in theft of University property or any other thing capable of being stolen.

7.1.13 Misuse of Electronic Resources

A student shall not engage in the improper use, or abuse of computers or any part of a computer or internet technology systems, computer facilities, computer network, and related resources. This includes the use of computing facilities and resources to interfere with the normal operations of the University's computing system.

7.1.14 Harassment and Stalking

A student shall not harass or stalk a fellow student or member of staff of the University.

7.1.15 Gender Based Violence (GBV)

A student shall not engage in GBV.

7.1.16 Bullying

A student shall not engage in bullying.

7.1.17 Inappropriate Dressing and Appearance

A student shall not wear clothing that is not reflective of the dictates of the programme or profession that the student is aspiring to undertake, or political regalia, or clothing with derogatory, offensive and/or lewd messages either in words or pictures, or drug paraphernalia on University premises or at official University activities.

7.1.18 Hazing

A student shall not engage in any acts that lead to hazing, irrespective of whether there was express or implied consent of the victim.

7.1.19 Violence

A student shall not engage in, incite, threaten, encourage, aid or abet another person or participate in any act of violence or attempted violence against any person or property on University premises, at University-sponsored activities, or in any other circumstance where the conduct has a direct connection with the University.

For the purpose of this Code, violence includes but is not limited to:

- a. Fighting or engaging in violent or disorderly conduct;
- b. Physical assault or battery;
- c. Common assault or assault occasioning bodily harm;
- d. Threatening or attempting to inflict physical harm on another person;
- e. Intimidation or conduct that creates a reasonable fear of physical harm;
- f. Damaging, destroying or attempting to destroy property;
- g. Carrying, possessing, displaying or using any weapon or dangerous object in a threatening or unlawful manner;
- h. Any other conduct that endangers or is likely to endanger the safety, security or wellbeing of any member of the University community or any other person.

7.1.20 Tampering with the University's safety and security installations

A student shall not tamper with, activate without authorization, or misuse any emergency or fire safety equipment within University facilities. Students are prohibited from failing to exit or from impeding the orderly evacuation of any facility, property, or building when a fire alarm or other emergency notification has been sounded. Furthermore, no student shall intentionally set fires in any University facility, on any person, or on campus without proper authority. It is equally prohibited to intentionally initiate or cause any false report, warning, or threat of fire, explosion, terrorism, or other emergencies, including knowingly reporting a false emergency.

7.1.21 Unauthorised use of University Facilities, Property, and Resources

A student shall not engage in unauthorized entry into, presence in, or use of University facilities, property, grounds, services, or resources. Likewise, students are prohibited from unauthorized possession, use, or receipt of University property or services, including the University's name, logo, or destroy, deface, vandalize, or tamper with University property, or with the property of others, whether on University premises or at University-sanctioned functions.

7.1.22 University Directive(s)

A student shall comply with reasonable instructions from University officials or emergency personnel performing their duties. This includes, but is not limited to, identifying oneself, handing over prohibited items, responding when required, or not leaving the scene of an incident without permission.

7.1.23 Disruption of University's Community Interest

A student shall not engage in any conduct or action, on or off-campus, which causes significant threat or disruption to any educational process or other legitimate function of the University, or the health or safety of any member of the academic community.

7.1.24 Malicious Complaints

A student shall not make malicious or unfounded complaints against any member of staff or fellow student of the University.

7.1.25. Cybercrimes

A student shall not engage in any cybercrimes.

7.1.26 Forgery

A student shall not make a false document with intent to defraud or to deceive. In order to constitute making of a false document, the definition in Section 344 of Penal Code Cap 87 of the Laws of Zambia shall be adopted for purposes of this clause.

7.1.27 Uttering of a false document

A student shall not knowingly utter a false document with intent to defraud or to deceive.

7.1.28 Rape/attempted rape

A Student shall not rape, attempt to rape or engage in any forced sexual act on any male or female student.

7.1.29 Indecent Assault

A student shall not indecently assault another student or member of staff

7.1.30 Insulting, Abusive or Offensive Conduct

A student shall not use abusive, insulting, obscene, vulgar, offensive, discriminatory, or threatening language or engage in conduct that is

intended or is reasonably likely to humiliate, degrade, intimidate, or offend any member of the University community or any other person.

For the purposes of this Code, insulting conduct includes, but is not limited to:

- a. Using abusive or offensive language, whether spoken, written, electronic, or by gestures;
- b. Making derogatory, discriminatory, or humiliating remarks;
- c. Directing obscene or profane language at another person;
- d. Engaging in conduct that amounts to verbal abuse or harassment.

7.1.31 Defamation

A student shall not publish, communicate, or otherwise disseminate any defamatory matter, allegation, or representation concerning another student, member of staff, the University, or any member of the University community where such statement is intended, or is reasonably likely, to injure the reputation, dignity, or standing of that person or the University.

7.1.32 Intoxication

A student shall not attend, remain on, or participate in any University activity while intoxicated or under the influence of alcohol, narcotic drugs, controlled substances, or any other intoxicating substance to such an extent that their behaviour, judgment, or physical or mental faculties are impaired.

7.1.33 Incitement of Fellow Students

A student shall not incite, encourage, induce, persuade, organise, recruit, or assist another student or any other person to commit an act of misconduct or to contravene any provision of this Code or any other University rule or policy.

7.2 Academic Misconduct

The following are what the University considers as academic misconduct whose sanctions are as outlined in Appendix 1 of this Code.

7.2.1 Examination Malpractice

For this rule, an examination includes every examination, test or assessment of a student's knowledge or performance organized or conducted by the University or any department of the University or any member of the academic staff of the University.

A student shall not engage in examination malpractice which shall include but is not limited to the following:

- (a) A student shall not introduce, or attempt to introduce, into any venue where an examination is being conducted or is about to be conducted, any book, note, mobile phone, electronic device, or other instrument capable of storing, sending, or receiving information, nor any article containing information, unless expressly authorised by the examiner, the Examinations Officer, or the Chief Invigilator.
- (b) The possession, use, or attempted use, during an examination of any book, note, mobile phone, or other electronic device or instrument capable of storing, sending or receiving information, or any other article containing information, the use of which is not authorised by the examiner or the examinations officer or Chief Invigilator.
- (c) The removal or attempted removal from an examination room of any examination book or writing paper supplied by the University to answer an examination;
- (d) The removal of any page from the Examination Answer Booklet, or tearing of any section or part of a question paper;
- (e) The communication or attempted communication of any information relating to an examination to any candidate while the examination is in progress;
- (f) The use of a false name or identification number in an examination;
- (g) The submission for examination as own work any written matter or project which has been copied, reproduced or extracted, in whole or in part, from the work of another, or which is substantially the same, in whole or in part, as the work of another;
- (h) Intentionally assisting another student to cheat;
- (i) The commission of any other fraudulent, deceitful or dishonest practice whereby any student, while being examined by the University, seeks to mislead or deceive the Examiner or the Examinations Officer or Chief Invigilator.
- (j) Writing or attempting to write an examination in a course that does not appear on the confirmation of registration slip and examination docket and the name of the student does not appear on the examination register.
- (k) Unauthorised possession of examination papers, whether knowingly or unknowingly, solicited or unsolicited.

7.2.2 Fabricating Academic Materials:

A student shall not fabricate, falsify, or alter academic materials or information. This includes, but is not limited to, inventing data or research results, falsifying sources or documents, submitting work not undertaken, misrepresenting participation, or presenting false information in any academic exercise or record.”

7.2.3 Plagiarism

A student shall not engage in any form of plagiarism.

7.2.4 Corrupt Practices

A student shall not engage in corrupt practices, which include but are not limited to the act of, whether individually or in conjunction with another person, corruptly giving, promising, or offering any gratification to any individual for the purpose of influencing the record of a grade or the evaluation of academic performance. Such conduct, whether for the benefit of the student or another person, constitutes an inducement or reward for doing, refraining from doing, or having done or refrained from doing anything in relation to any matter or transaction, actual or proposed, with which any person is or may be concerned.

7.2.5 Grade Tampering

A student shall not interfere with or meddle with grades assigned by the University.

7.2.6 Impersonation

A student shall not allow another person to impersonate the student, nor shall the student impersonate another student or any other person, nor aid or abet anyone in doing so. This includes, but is not limited to, taking examinations, submitting assignments, signing attendance, use of identification cards or accessing university services on behalf of another person without proper authorisation.

7.2.7 Absenteeism

A student shall attend at least 80% of each course for which the student is duly registered.

7.2.8 Examination by Proxy

A student shall not take or attempt to take an examination for someone else nor will a student allow another person to take or attempt to take an examination on his or her behalf.

7.2.9 Falsification of Information

A student shall not knowingly falsify, distort, misrepresent or fabricate information at any time. Falsification also includes knowingly furnishing false information and knowingly reporting a false emergency.

7.2.10 Forgery and Uttering of Registration or Examination Dockets

A student shall not forge, alter, counterfeit, reproduce without authority, falsify or knowingly use, present, circulate or utter a forged, altered, counterfeit or fraudulently obtained registration docket, examination docket or examination permit or any other official university document in relation to registration or examinations.

7.2.11 Absence from the Examination Hall

A student who has been given permission to leave the examination hall shall return within 5 minutes unless a longer period has been expressly authorised by the Chief Invigilator due to exceptional circumstance. Should the student fail to return within the authorised period or should the student be found in any other unauthorised place away from the venue, such a student will be deemed to have committed an examination offence.

7.3 Student Accommodation

The provisions of the University of Lusaka Student Housing and Residence Policy shall govern all matters relating to student accommodation, including eligibility, application procedures, allocation of rooms, conduct in residence, and forfeiture of accommodation. Students are required to familiarise themselves with the Policy, which is reviewed periodically and published on the official University website.

7.3.1 Handling of Offences and Breaches

Any breach of the Student Housing and Residence Policy that constitutes misconduct or a violation of residence regulations shall be referred to the Disciplinary Committee, which shall determine the appropriate sanction in accordance with the University's disciplinary procedures.

7.3.2 Role of the Hostel Matron/Patron

The Hostel Matron or Patron shall be responsible for addressing minor residence-related matters not expressly covered under the Housing and Residence Policy, such as interpersonal disputes, informal complaints, and minor inconveniences. In all cases involving potential policy breaches, the Matron or Patron shall refer the matter to the Disciplinary Committee for formal handling.

7.4 Library

A student shall not engage in conduct that disturbs other readers in the library such as shouting, speaking very loudly or using a mobile phone. The affected student will be banned from the library for a semester.

A student shall not attempt to steal library books and any other library resources. The affected student will be expelled.

A student shall not mutilate and/or remove library books or any other resources. The affected student will be expelled.

A student shall not keep library material after the return date. The affected student will be charged an amount to be determined by the University at the specific time.

A student shall not leave the library after the official closing time. The affected student shall be given a warning letter and thereafter shall be barred from use of the library for a semester.

8.0 Breach of the provisions of any University Code of Conduct, rule or regulation

The University will sanction breach of the provisions of this Code of Conduct, or any rule or regulation of the University accordingly.

Nothing in this Code prevents the University from referring any alleged acts of misconduct to the appropriate law enforcement authorities where the conduct may constitute a criminal offence under the laws of Zambia.

9.0 PROCEDURE

A complaint should be filed as soon as possible after the alleged misconduct with evidence as may be necessary. The complaint should describe the incident, individuals involved or witness to the misconduct. Additional materials that support the complaint should be submitted (e.g. photos, written correspondence, copies of emails and/or texts).

9.1 Academic Offences

The Student Disciplinary Committee shall deal with academic offences.

a) Offence in the Examination Venue

An examination offence will require direct intervention by at least two invigilators or one invigilator and the Chief Invigilator for the examination. The invigilator who identifies the offence shall stop the student from writing that particular examination paper, and proceed to document the offence. All evidence key to the offence shall be documented and as the case may be, photographed. The student shall be requested to provide a written narrative of the events and provide an exculpatory or confession statement.

Where the Committee deems necessary, it may request the student to appear before it and make oral representations.

b) Offences outside Examination Venue

Offences that may take place outside of the examination include those related to assignment submission, report submission, laboratory reports, and research papers among others.

A lecturer or coordinator may identify these offences. Upon their discovery, the lecturer should inform the coordinator or Head of Department. The student should be asked to

provide a report on the event, which may be a confession or exculpatory statement. The Head of Department will submit all the documents related to the offence to the Dean of the School who will transmit the record to the Disciplinary Committee within 48 hours.

9.2 Non-Academic Offences

A report of a non-academic offence requiring a disciplinary hearing shall be made to the Dean of Students in writing. Upon receipt of the report, the Dean of Student Affairs shall inquire into the matter and gather evidence. If the evidence is cogent, the Dean shall transmit the report to the Committee which shall handle the alleged offence.

10.0 DISCIPLINARY COMMITTEE

The Disciplinary Committee is established by the Senate of the University to hear and determine offences with which the students are charged; summon any person as a witness to appear before it, and submit its findings and recommendation to the Senate.

10.1 Composition

The Committee shall comprise of the following members:

- | | |
|---|------------------|
| 1. Deputy Vice Chancellor (Academic) | Chairperson |
| 2. Deputy Vice Chancellor (Research, Innovation and Internationalisation) | Vice Chairperson |
| 3. Registrar (Academic) | Convener |
| 4. Dean of Students Affairs | Member |
| 5. Executive Deans of Schools | Member |
| 6. Director Quality Assurance | Member |
| 7. Mentor | Member |
| 8. Deputy Registrar | Secretary |

The Committee may, as the case demands, appoint another member of staff to attend as a Member.

10.2 Procedures

The Disciplinary Committee shall meet to hear and determine an offence. The Chairperson shall preside over the meeting and in his/her absence, the Vice Chairperson. In the absence of the Chairperson or Vice-Chairperson, the Registrar or the Deputy shall preside over the meeting. A quorum of at least 5 members shall be present at every meeting. A report of the minutes and recommendation of the disciplinary meeting shall be submitted to the Senate. The decisions of the Committee shall be based on the Student Disciplinary Code of the University of Lusaka.

10.3 Sanctions

The Committee may issue sanctions as part of their final decision. These sanctions may include, but are not limited to, the following:

10.3.1 Warning or Reprimand

This means a formal written expression of the University's disapproval of a student's misconduct. A reprimand serves as a disciplinary sanction and forms part of the student's disciplinary record. It may be considered in determining sanctions for any subsequent misconduct.

10.3.2 Suspension

Suspension means the temporary withdrawal of a student's right to attend classes, participate in academic or extracurricular activities, access University facilities, reside in University accommodation, or enjoy any other privileges of student status for a specified period and subject to such conditions as the University may impose. Unless otherwise determined by the University, a suspended student shall not be entitled to represent the University or participate in University activities during the period of suspension.

10.3.3 Expulsion

Expulsion means the permanent removal of a student from the University, resulting in the termination of the student's enrolment and all rights and privileges associated with student status. A student who has been expelled shall cease to be a student of the University and may only be readmitted in exceptional circumstances and in accordance with the University's policies, if at all. A student who is expelled from the University is nonetheless responsible for all financial obligations which he or she has incurred to the University.

10.3.4 Fines and Reparation

Fine means a monetary penalty imposed on a student as a disciplinary sanction for misconduct. A fine shall be payable within the period prescribed by the University, and failure to pay the fine may result in additional disciplinary or administrative action in accordance with University policies.

Reparation (Restitution) means an order requiring a student to repair, replace, restore, or compensate for any loss, damage, destruction, or injury caused by the student's misconduct. Reparation may include payment for damaged property, reimbursement of financial loss, restoration of University property, or any other appropriate form of compensation determined by the University.

The University can impose fines or reparation either in their own right or in addition to other punishment meted out.

- (a) Any fine or reparation imposed shall be paid by the student or student organisation to the Accounts Office of the University following the order passed by the Student Disciplinary Committee.

- (b) Upon application by the student or student organisation, the Senate may, in its discretion, grant an extension of time for the payment of a fine or reparation, or permit the payment of the fine or reparation in instalments.
- (c) In the event of a student failing to make payment within the period provided in this rule, the student concerned may be subjected to further disciplinary action.
- (d) In the event that a student organisation fails to make payment within the period provided in this rule, the Senate may suspend such organisation until the fine is paid.

10.4 Mitigation

The Committee may, in meting out the appropriate sanction, consider the following factors:

- a) Nature of the violation(s);
- b) Prior findings of responsibility and sanction(s);
- c) Mitigating circumstances surrounding the violation;
- d) Student's motivation(s) for engaging in the behaviour;
- e) Impact of the behaviour;
- f) Sanctions which have been imposed in similar cases in the past;
- g) Developmental and educational impact on the student; and
- h) The overall impact on the university community.

11.0 APPEALS

A student or student organisation that is dissatisfied with the decision of the Disciplinary Committee may appeal to Senate within seven (7) days of the date the decision was made.

Senate shall hear and determine the appeal within seven (7) days. The decision of Senate shall be final and not subject to appeal.

12.0 ENTRY INTO EFFECT

This Student Code of Conduct shall take effect from the date of its publication following its approval by the Senate.

13. REVIEW

The Code shall be reviewed every two (2) years to ensure relevance and effectiveness.

APPENDIX I

ACADEMIC OFFENCES AND SANCTIONS

No	Type of Offence	First Breach	Second Breach	Third Breach
1	Examination malpractice	Suspension	Expulsion	
2	Falsification of information	Expulsion		
3	Plagiarism	Fail and written warning	Suspension	Expulsion
4	Forgery and Uttering of Registration or Examination dockets	Expulsion		
5	Impersonation	Expulsion		
6	Examination by proxy	Expulsion		
7	Absenteeism from classroom	Written Warning	Baring from writing an examination	
8	Corrupt practices	Expulsion		
9	Absence from the exam hall	Suspension	Expulsion	
10	Grade Tampering	Expulsion		
11	Fabricating Academic Materials	Suspension	Expulsion	

APPENDIX II

NON-ACADEMIC OFFENCES

No.	Type of Offence	First Breach	Second Breach	Third Breach
1	Smoking	Written warning	Suspension	Expulsion
2	Possession of, use, or distribution of Alcohol	Suspension	Expulsion	
3	Disruptive Conduct	Written Warning	Suspension	Expulsion
4	Obscene Conduct	Written Warning	Suspension	Expulsion
5	Public disturbance	Written Warning	Suspension	Expulsion
6	Disruptive Noise	Written Warning	Suspension	Expulsion
7	Possession of, use of or distribution of Weapons	Expulsion		
8	Theft	Expulsion		
9	Malicious Complaints	Warning	Suspension	Expulsion
10	Littering	Fine not exceeding ZMW 500 and a Written Warning	Suspension	Expulsion
11	Possession of, use or distribution of Drugs	Expulsion		
12	Violence	Expulsion		

13	Harassment and Stalking	Suspension	Expulsion	
14	Gender Based Violence (GBV)	Expulsion		
15	Bullying	Suspension	Expulsion	
16	Hazing	Written Warning	Suspension	Expulsion
17	Obscene Matter or things	Suspension	Expulsion	
18	Tampering with the University's safety and security installations	Fine not exceeding ZMW 10,000	Suspension	Expulsion
19	Vandalism	Fine not exceeding ZMW 10,000 and Expulsion		
20	Unauthorised use of University facilities, property & resources	Fine not exceeding ZMW 2500 and Suspension	Expulsion	
21	Disrupting University Community Interests	Written Warning	Suspension	Expulsion
22	Misuse of Electronic resources	Fine not exceeding ZMW 2500	Suspension	Expulsion
23	Failure to comply with University Directives	Written Warning	Suspension	Expulsion
24	Inappropriate dressing and appearance	Written Warning	Suspension	Expulsion
25	Cyber Crimes	Suspension	Expulsion	

26	Forgery	Expulsion		
27	Uttering of a false document	Expulsion		
28	Rape/attempted Rape	Expulsion		
29	Indecent Assault	Expulsion		
30	Intoxication	Written Warning and Mandatory Counselling	Suspension,	Expulsion
31	Defamation	Suspension and a Fine	Expulsion	
23	Insulting, Abusive or Offensive Conduct	Written Warning	Suspension	Expulsion
33	Incitement	Written Warning	Suspension	Expulsion



UNIVERSITY
of LUSAKA